

DISCOVER BANK v MASON

CF8837

DEFENDANT'S CLAIM OF EXEMPTION

On April 29, 2010 judgment creditor Discover Bank ("Discover") obtained a judgment against defendant Laverne Mason ("Mason") in the amount of \$10,609.80 with a current balance to satisfy of \$18,204.00. After Discover filed a renewal of judgment, the Court issued a new Writ of Execution on April 26, 2024. After Lassen County withheld funds, Mason filed a claim of exemption. Discover has withdrawn its opposition to the claim of exemption.

Code of Civil Procedure section 706.050(a) states:

Except as otherwise provided in this chapter, the maximum amount of disposable earnings of an individual judgment debtor for any workweek that is subject to levy under an earnings withholding order shall not exceed the lesser of the following: (1) Twenty-five percent of the individual's disposable earnings for that week. (2) Fifty percent of the amount by which the individual's disposable earnings for that week exceed 40 times the state minimum hourly wage in effect at the time the earnings are payable.

Mason states that her monthly pay is \$4,881.19. From this monthly amount, Mason claims that \$415.47 is deducted for federal and state withholding, \$115.37 for state tax, and that her monthly take home pay after taxes and deduction, \$302.18 for health insurance, and \$2.00 for "RPESJC Duc." Mason therefore states that her monthly take home pay is \$4,046.21. After expenses, Mason states that her disposable income is \$104.56. Mason does not state how often she is paid.

Mason states her disposable income is \$104.56 per month. That amount divided by four results in Mason having \$26.14 per week in disposable income. Twenty-five percent of \$26.14 is \$6.54.

Accordingly, pursuant to Code of Civil Procedure section 706.050(a)(a), **Lassen County shall withhold \$6.54 per week until the judgment is satisfied.**

The Clerk shall provide notice of the Ruling forthwith. Plaintiff to prepare a formal Order conforming to this Ruling pursuant to Rule 3.1312.